

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2022-1341

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE AS A
LICENSED PROFESSIONAL COUNSELOR THE STATE OF COLORADO OF PAUL VINCENT
KLEEMAN, LICENSE NO. LPC.0016033,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Paul Vincent Kleeman ("Respondent"), as follows:

1) The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").

2) Respondent was licensed to practice as a licensed professional counselor in the State of Colorado on February 4, 2020.

3) This Order is a full and final resolution of case number 2022-1341. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

4) Based on its review of the above cases listed in paragraph 3, the Board alleges that Respondent violated sections 12-245-224(1)(g)(I) and (i), C.R.S. Respondent admits the following:

- a. Respondent failed to maintain appropriate boundaries with a minor client.
- b. Respondent failed to seek supervisory assistance when the client made disclosures of a sexual nature, unrelated to the scope of the therapeutic relationship.
- c. Respondent failed to properly document these disclosures and any ensuing conversations with the client.

5) Respondent agrees that if the allegations were proven by the Board at hearing, Respondent would be found to have violated sections 12-245-224(1)(g)(I) and (i), C.R.S., which state:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(g)(l) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

(i) Has maintained relationships with clients that are likely to impair the person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives;

PROBATION

6) Respondent's license to practice as a professional counselor in the State of Colorado is hereby placed on probation for a period of two (2) years commencing from the effective date of this Order. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order. If at any time Respondent is not in compliance with the terms and restrictions of probation, Respondent shall cease the practice of licensed professional counseling. Respondent understands and agrees that a failure to meet any of the terms of probation may result in a suspension and/or revocation of his license to practice as a professional counselor.

7) If Respondent leaves the State of Colorado for an extended period of time Respondent shall report this information to the Board. Upon such report, the Respondent may petition the Board for early termination of the probationary period or to toll the period of probation during the time Respondent is not practicing as a licensed professional counselor in the State of Colorado. Such period of probation may resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order, if the Board deems continued probation would be appropriate.

8) Credit towards the period of probation will be given only for those periods of time during which Respondent is practicing as a licensed professional counselor in the State of Colorado, is being monitored by a practice monitor, unless specifically released from that obligation by the Board and is in full compliance with all terms of this Order.

9) Respondent shall report to the Board if he discontinues the practice of licensed professional counseling. Respondent shall notify the Board upon resuming the practice of professional counseling.

10) If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

PRACTICE MONITOR

11) During the period of probation, Respondent's practice shall be monitored by a practice monitor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three (3) proposed practice monitors for the Board's approval. Respondent shall include a program-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the practice monitor have a minimum of five (5) years of experience and has not been subject to professional discipline;
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

12) Respondent must have a practice monitor approved by the Board within two months of the effective date of this Order. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until a practice monitor is approved, unless an extension is granted by the Board. The Board shall provide prompt notice of approval or denial of a practice monitor so that Respondent may adhere to his obligations under this Order.

13) After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring within 30 days. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until the written contract for practice monitoring is executed unless an extension is granted by the Board. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaints and responsive documents, any investigative report, and the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

14) The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

15) Should the Board determine from the practice monitor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability, or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board

will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

16) The practice monitoring shall consist of individual sessions, either in-person or via video, that occur for one (1) hour, or such longer time as the practice monitor deems necessary, for every twenty (20) hours of client contact, but at least once each month. Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing as a Licensed Professional Counselor in accordance with generally accepted standards of practice and with skill and safety for his clients.

17) The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted by the practice monitor by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed, unless otherwise ordered by the Board.

18) If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

19) If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of Social Work.

20) Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

21) Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Board in accordance with this Order.

CONTINUING EDUCATION

22) Within twelve (12) months of the effective date of this Order, Respondent shall successfully complete the PROBE: Ethics and Boundaries Program (www.cpepd.org) and shall register for the next available program in Colorado following the effective date of this Order. To successfully complete the program, Respondent must receive a passing evaluation or grade,

without any condition or qualification. Upon completion of the program, Respondent shall ensure that a certificate/letter of completion is provided to the Board. If Respondent fails to register for and successfully pass the next available PROBE program in Colorado, Respondent must cease practice and agree to a suspension of his practice until he successfully passes the PROBE program.

23) Further, Respondent agrees to complete ten (10) additional hours in continuing education credits in record keeping during this probationary period. In order to receive credit toward compliance with this Order, continuing education credits must be pre-approved by the Board.

24) These program hours and record keeping coursework completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado credentialing or to meet any other credentialing requirements.

TERMS AND CONDITIONS

25) Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

26) This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

27) This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

28) This Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

29) This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

30) This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

31) This Order shall be admissible as evidence at any hearing held before the Board.

32) This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

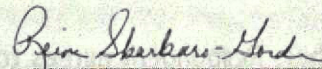
RESPONDENT



PAUL VINCENT KLEEMAN
License No. LPC.0016033

AGREED TO AND ORDERED BY:

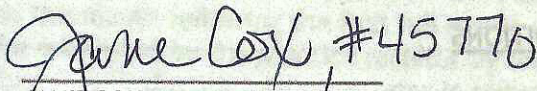
STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



RENA SBARBARO-GORDON
Program Director

Effective this 18th day of July, 2023.

APPROVED AS TO FORM:

 #45770

JANE COX
Attorney for Respondent